

24LBCV01506 24LBCV01506

County: los-angeles

Division: Civil Law and Motion

Department: S25

Hearing date: 2026-07-07

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Case Number: 24LBCV01506 Hearing Date: July 7, 2026 Dept: S25

Motion: Plaintiff, Elijah Dior Duque, a minor, by and through his Guardian ad Litem, Angelina Duque's Petition to Approve Minor's Compromise

Moving Party: Plaintiff, Elijah Dior Duque, a minor, by and through his Guardian ad Litem, Angelina Duque ("Plaintiff")

Responding Party: None

Tentative Ruling

The Court has reviewed the proposed settlement and finds that the settlement itself is fair and reasonable. The minor claimant here has agreed to dismiss his claims; Defendant Norma Ann Dawson will pay \$7,499.99 to minor claimant. (Pet. ¶ 10.a.) Plaintiff Jose Jesus Chavez Moreno will receive \$74,999.99 and Plaintiff Maricela Chavez will receive \$149,999.99. (Pet. ¶ 11.a.5.) The amount of attorney's fees requested, representing 25 percent of the gross settlement to minor claimant, is \$1,874.99. (Pet. ¶ 13.a, Attachment 13a [Shapiro Declaration] ¶ 7.) The minor claimant, through her guardian agreed to a 45 percent contingency fee arrangement after the first 90 days of the attorney's representation of minor claimant; however, Plaintiff's counsel is seeking less than the agreed upon 40 percent. (Pet., 13.a., Attachment 13a ¶, 7, Attachment 17a [Retainer Agreement] ¶ 6(b).) The petition does not seek any medical expenses. (Pet. ¶ 12.) The petition further seeks \$1,270.61 for expenses (other than medical expenses) that have been incurred or advanced. (Pet. ¶ 13.b, Attachment 13a ¶ 8, Ex. A.) Claimant will receive \$4,354.99 after payment of all fees and expenses. The Court finds that Plaintiff's counsel has set sufficient facts breaking down and explaining the legal fees and costs incurred in litigating this matter. (Cal. Rules of Court, rule 7.955(b).)

Plaintiff, ELIJAH DIOR DUQUE, a minor, by and through his Guardian ad Litem, Angelina Duque's Petition to Approve Minor's Compromise is GRANTED.